

TENTATIVE RULINGS

DEPT CM2

Judge Andre De La Cruz

Court Reporters: Official court reporters (*i.e.*, court reporters employed by the Court) are not provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#); and
- [Court Reporter Interpreter Services](#).

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website no later than Wednesday afternoon immediately preceding Thursday's hearing. Moreover, tentative rulings may not be posted in every case.

Please do not call the department for tentative rulings if tentative rulings have not been posted.

The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted. Further, a motion may not be taken off calendar once a tentative ruling has been posted unless the entire action has been dismissed.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk by sending an email to: acarbajal@occourts.org. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

When a proposed order is required, even if motion is unopposed, the parties are ordered to submit it in two formats: (1) one draft in MS Word (*.doc or *.docx); and (2) one draft in PDF format with all attachments/exhibits attached thereto in accordance with Cal. R. Ct. 3.1312(c)(1) and (2).

Non-appearances: If nobody appears for a hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. *See Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal. App. 4th 436, 442 (2012), fn. 1.

Appearances: Department CM2 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to Code of Civil Procedure § 367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court’s website at <https://www.occourts.org/civil-remote-hearings> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing.

It is your responsibility to ensure that your *audio and video* are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS
July 23, 2026

#	Case Name	Tentative
2.	30-2023-01328383-CU-BC-CJC CommerceWest Bank vs. ADMI California, Inc.	Plaintiff CommerceWest Bank moves for an order entering judgment against defendants ADMI California, Inc., Allen D. Moyer, ADMI, Inc., and Corinthian Development Company, Inc. in the amount of \$2,176,420.01 plus interest thereon at the highest legal rate from December 15, 2025 until the date of entry of judgment. Preliminarily, the amount requested in the notice of motion appears to be a typographical error involving transposed numbers. The moving papers suggest that the correct amount is \$2,176,420.10, which is a <i>de minimus</i> increase of nine cents. The settlement stipulation that the Court approved on October 3, 2024 (ROA 47) provides as follows in paragraph 2(a):

	“Defendants shall stipulate to judgment in the sum of \$2,386,520.10 (less any payments made hereunder). The Stipulation for Entry of Judgment shall be executed concurrently herewith. Plaintiff will not file this Stipulation unless a default occurs, or Plaintiff is required to do so by the Court and agrees not to have judgment entered unless a default occurs under any ter, condition, or performance of this Stipulation. However, it is agreed that should Defendants default in their obligations as set forth above, Defendants shall be given 3 days to cure any default and, if they do not do so, this Stipulation and Judgment may be entered by the Plaintiff by ex parte motion with email notice to Defendants’ counsel at sarah@shaperolawfirm.com.” The settlement stipulation sets forth the payment terms in paragraph 2(b). These terms required defendants to pay \$45,000 on or before August 15, 2024, \$15,000 every month between October 2024 and November 2025, and the remaining balance plus interest on December 15, 2025. That paragraph further provides that if any payment is not made in a timely manner, plaintiff would be entitled to immediately enter the stipulated judgment for the full balance after a right to cure of three days was given to the defendants. Plaintiff has submitted the declaration of attorney David A. Simon with the application. In this declaration, Attorney Simon declares that defendants made a total of fourteen monthly payments of \$15,000 each on the agreement and then stopped paying. He declares that notice of the default was given to defendants on March 31, 2026 and that they failed to cure the default. Plaintiff has shown that it is entitled to entry of the stipulated judgment in the amount of \$2,176,420.10 (\$2,386,5210.10 less payments of \$210,000) plus interest at the legal rate from December 15, 2025 until the date of entry of judgment. The application of plaintiff CommerceWest Bank for an order entering stipulated judgment against defendants ADMI California, Inc., Allen D. Moyer, ADMI, Inc., and
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		Corinthian Development Company, Inc., is GRANTED. Plaintiff is ordered to give notice.
3.	<u>30-2025-01456501-CU-IC-CJC</u> Johnson vs. Farmers Insurance Exchange.	As a preliminary matter, the Court notes that Defendant Farmers Insurance Exchange's ("Defendant") oppositions to Plaintiffs Michael and Crystal Johnson's ("Plaintiffs") motions were filed one week <i>after</i> the Court ordered deadline to file. <i>Compare</i> ROAs 111, 113, 115, 117, 121 <i>with</i> ROA 85. Consequently, the Court hereby exercises its discretion to not consider Defendant's late-filed papers. Cal. Rules of Court, rule 3.1300(d) ("If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate."). Before the Court are the following two (2) motions brought by Plaintiffs against Defendant: (1) a Motion to compel Further Responses to Special Interrogatories ("MF-SROG"), Set One; and (2) a Motion to Compel Further Responses to Requests for Production ("MF-PROD"), Set One. ROAs 96, 102. The underlying controversy involves claims for breach of contract, breach of the implied obligation of good faith and fair dealing, bad faith, and unfair business practices arising from Defendant's investigation of Plaintiffs' February 2024 water loss claim for their residential property. ROA 2. Plaintiffs seek an order pursuant to California Code of Civil Procedure Sections 2031.310 and 2031.320, compelling Defendant to do the following within twenty (20) days after notice of the Court's order: serve further, verified, code compliant responses and produce all non-privileged documents responsive to Plaintiffs' Requests for Production

	("PROD"), Set One, Nos. 1-22 and 26-38, without objections; to produce unredacted and unobscured copies of previously produced documents labeled FIE-0100177, FIE-01-0809, FIE-01-0810, FIE-01-0878, FIE-01-0879, FIE-01-0903, FIE-01-0914, FIE-010915, FIE-01-0920 through FIE-01-0925, FIE-01-0928, and FIE-01-0929; and to serve a code compliant privilege, redaction, and confidentiality log. ROA 96, pp. 18-19. Plaintiffs also seek an order, pursuant to California Code of Civil Procedure Section 2030.250 and 2030.300, compelling Defendant to serve further, verified, code compliant responses to Plaintiffs' Special Interrogatories ("SROG"), Set One, Nos. 17-28, in accordance with the parties' agreed-upon narrowed scope, within twenty (20) days of receipt of the Court's order. ROA 102, pp. 2, 10. Good Cause Showing re: Motions to Compel Further Responses to Requests for Production In addition to a declaration outlining the moving party's efforts to meet and confer in good faith to resolve the underlying discovery disputes, which the Court finds Plaintiffs have satisfied here, California Code of Civil Procedure Section 2031.310 requires the party seeking to compel further responses to requests for production to "set forth specific facts showing good cause justifying the discovery sought by the demand." Cal. Civ. Proc. Code § 2031.310(b)(1). To establish good cause, the moving party must "identify a disputed fact that is of consequence in the action[;]" and explain how "the discovery sought will tend in reason to prove or disprove that fact[,]" or will otherwise "lead to other evidence that will tend to prove or disprove the fact." <i>Williams v. Super. Ct.</i>, 187 Cal. Rptr. 3d 321, 325 (2015) (previously published at 236 Cal. App. 4th 1151); <i>see Calcor Space Facility, Inc. v. Super. Ct.</i>, 53 Cal. App. 4th 216, 224 (1997) (vacating an order compelling production where the moving party failed to present "specific facts relating to each category of materials sought to be produced;" offered "mere generalities" as justification for the production; and did not provide "focused, fact-specific justifications for
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	[their] demands.”). After a thorough review of Plaintiff’s MF-PROD, Set One, and accompanying Separate Statement, the Court finds that Plaintiff has not shown good cause to justify the production sought by Plaintiff’s PROD, Set One, Nos. 1-4, 30, and 31. ROAs 96, 89. Plaintiff fails to either identify a disputed fact of consequence specific to each request, explain how the discovery sought would tend to disprove that fact, or both. Consequently, Plaintiff is not entitled to further responses to PROD, Set One, Nos. 1-4, 30, and 31. As to the remainder of Plaintiff’s PROD, Set One, the Court finds that Plaintiff has shown good cause requesting the production sought. Verification of Discovery Responses Responses to interrogatories and requests for production must be signed under oath by the responding party. Cal. Civ. Proc. Code §§ 2030.250(a), 2031.250(a). If any response contains an objection, the attorney must also sign the response. Cal. Civ. Proc. Code §§ 2030.250(c), 2031.250(c). Accordingly, if a response consists entirely of objections, only the attorney must sign. For hybrid responses (those that contain both an answer and objections), the responding party must verify their portion, and the attorney must sign the objection. <i>Food 4 Less Supermarkets, Inc. v. Super. Ct.</i>, 40 Cal. App. 4th 651, 657-58 (1995). Unverified responses served within the discovery deadline are <i>not</i> code compliant. <i>Id.</i>; <i>see Melendez v. Super. Ct.</i>, 215 Cal. App. 4th 1343, 1348 (2013) (stating “an unverified response is tantamount to no response at all.”); <i>see also Laguna Auto Body v. Farmers Ins. Exch.</i>, 231 Cal. App. 3d 481, 489 (1991) (citing the lower court’s finding that unverified responses are “legally invalid.”). Objections served in a timely but unverified hybrid response are <i>not</i> waived. <i>Food 4 Less, supra</i>, 40 Cal. App. 4th at 657-58. Additionally, California Code of Civil Procedure Section 2015.5 provides that whenever the laws of California permit or require a matter to be supported by a verification, if said verification is executed anywhere outside of the state of California, the verification must state “the date of execution
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	and that it is so certified or declared under the laws of the <i>State of California</i>.” Cal. Civ. Proc. Code § 2015.5 (emphasis added). Importantly, the 45-day limit for the propounding party to file motions to compel further responses, pursuant to California Code of Civil Procedure Sections 2030.300 and 2031.310, does not begin until the responding party provides verified responses or verification of previously supplied responses. <i>Golf & Tennis Pro Shop, Inc. v. Super. Ct.</i>, 84 Cal. App. 5th 127, 135 (2022); Cal. Civ. Proc. Code §§ 2030.300(c), 2031.310(c). This also applies to unverified hybrid responses. <i>Golf & Tennis, supra</i>, 84 Cal. App. 5th at 136. Here, Defendant served unverified initial responses to Plaintiff’s PROD, Set One and SROG, Set One, on June 10, 2025. ROA 97, ¶ 6. On August 8, 2025, Defendant served a code compliant verification of Defendant’s initial responses to Plaintiff’s PROD, Set One, and SROG, Set One. ROA 97, ¶¶ 24, 27. On March 18, 2026, Defendant served supplemental responses to Plaintiff’s PROD, Set One, Nos. 1-4, 8, 10, 11, 14, 16, 22, 30, 36, and 37, and Plaintiff’s SROG, Set One, Nos. 17-27. ROA 89; ROA 97, ¶ 28. Defendant’s verification accompanying these supplemental responses was executed in Nevada and declared under penalty of perjury under Nevada law. ROA 97, ¶¶ 25, 28. On June 3, 2026, Defendant served second supplemental responses to Plaintiff’s PROD, Set One, Nos. 3, 4, 14, 30, and 36; and supplemental responses to Plaintiff’s PROD, Set One, Nos. 5, 6, 13, 28, 29, 32-35, and 38. ROA 89; ROA 97, ¶ 26. Defendant also produced documents labeled FIE-07-0001 through FIE-07-2547 and FIE-10-0001 through FIE-10-0113. ROA 97, ¶ 26. Defendant’s verification accompanying these responses was also executed in Nevada and declared under penalty of perjury under Nevada law. <i>Id.</i> The Court also notes that Defendant’s supplemental responses were served <i>two (2) weeks after</i> the deadline ordered by the Court. ROA 69.
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Consequently, the Court finds that all of Defendant's supplemental and second supplemental responses to Plaintiff's PROD, Set One, and SROG, Set One, are invalid on the grounds that the verifications for such were not executed *under the laws of the state of California*. The effect of the Court's finding on this matter renders Defendant's supplemental and second supplemental responses invalid, such that no response was provided, but does not waive any timely served objections that were incorporated from Defendant's initial timely responses.

Code Compliant Responses to Requests for Production

Responses to requests for production must take the form of either: (i) an agreement to comply; (ii) a representation of inability to comply; or (iii) objections. Cal. Civ. Proc Code § 2031.210(a).

An agreement to comply is a statement that the party will comply with the demand by the specified date. Cal. Civ. Proc. Code § 2031.210(a). The response must be specific as to what is agreed and must state both: (i) that the production or inspection will be permitted in whole or in part; and (ii) that the items demanded that are in the responding party's custody or control, which are not subject to objections, will be produced. Cal. Civ. Proc. Code § 2031.220. Importantly, the items to which the responding party agrees to produce must be of the "demanded category" of items requested by the propounding party. *Id.*

Compliance requires that the responding party produce the documents specified in the demand on the date specified, and identify any documents produced with the specific request number to which they respond. Cal. Civ. Proc. Code § 2031.280(a)(b).

A statement that the responding party is unable to comply with the demand for production must: (i) affirm that the responding party conducted a diligent search and a reasonable inquiry in an effort to locate the demanded item; and (ii) state the reason the party is unable to comply. Cal. Civ. Proc. Code § 2031.230. Acceptable reasons include that

	“the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. <i>Id.</i> If the responding party either knows or believes that another party has possession, custody, or control of the demanded item, the responding party must state the name and address of said party. <i>Id.</i> A responding party who objects to any item or category requested for production, either in whole or in part, must: (i) identify with particularity the specific document or information demanded to which the responding party objects; and (ii) set forth the specific ground for objection. Cal. Civ. Proc. Code § 2031.240(b). If only part of an item or category of a demand is objectionable, the responding party must provide either a statement of compliance or inability to comply as to the remainder. Cal. Civ. Proc. Code § 2031.040(a). “If a demand for production does not specify a form or forms for producing a type of electronically stored information, the responding party shall produce the information in the form in which it is ordinarily maintained or in a form that is reasonably usable.” Cal. Civ. Proc. Code § 2031.280(d)(1). “The objection of [undue] burden is valid only when that burden is <i>demonstrated</i> to result in injustice. <i>West Pico Furniture Co. v. Super. Ct.</i>, 56 Cal. 2d 407, 418 (1961) (emphasis added). To make this showing, a party opposing discovery must make “a factual showing to the trial court of the nature and extent of the trouble and expense which would [] [be] entailed in responding to the request for discovery”, and “that the ultimate effect of the burden is incommensurate with the result sought.” <i>Mead Reinsurance Co. v. Super. Ct.</i>, 188 Cal. App. 3d 313, 321 (1986) (quoting <i>West Pico</i>, <i>supra</i>, 56 Cal. 2d at 417); <i>Lopez v. Watchtower Bible & Tract Soc’y of New York, Inc.</i>, 246 Cal. App. 4th 566, 578-79 (2016) (rejecting a responding party’s overbreadth objections for failure to support their claims that the request would impose an enormous administrative burden). Objections on the grounds that a discovery request is vague
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	or ambiguous are valid “only if the question or request is wholly unintelligible or precludes an intelligent reply.” Cal. Judges Benchbook: Civil Proceedings-Discovery § 5.5. Relatedly, however, California Code of Civil Procedure Section 2031.030 requires propounding parties to designate items requested in discovery by either “specifically describing each individual item or by reasonably particularizing each category of item.” Cal. Civ. Proc. Code § 2031.030(c)(1). The categories must be “reasonably particularized from the standpoint of the party who is subjected to the burden of producing the materials.” <i>Calcor Space Facility, supra</i>, 54 Cal. App. 4th at 222 (finding it would impose too great a burden on the propounding party to “specifically describe an individual item without first ascertaining its existence.”). To sustain an objection on the grounds that a discovery request is irrelevant to the subject matter, a party must show that the “line of questioning cannot, as a reasonable possibility, lead to the discovery of admissible evidence or be helpful in preparation at trial.” <i>Pacific Tel. & Tel. Co. v. Super. Ct.</i>, 2 Cal. 3d 161, 173 (1970). “For discovery purposes, information is relevant if it might reasonably assist a party in <i>evaluating</i> the case, <i>preparing</i> for trial, or <i>facilitating</i> settlement.” <i>Gonzalez v. Super. Ct.</i>, 33 Cal. App. 4th 1539, 1546 (1995) (italics original, internal quotes omitted.). “[D]oubts as to relevance should generally be resolved in favor of permitting discovery.” <i>Pacific Tel., supra</i>, 2 Cal. App. 3d at 173. An objection to a discovery demand on the grounds that it seeks premature disclosure of expert witness testimony or opinion is invalid. Instead, the proper procedural retort is to move for a protective order. Cal. Civ. Proc. Code 2034.250(a). That the form of a question assumes facts not in evidence is not a valid objection to interrogatories. <i>West Pico, supra</i>, 56 Cal. 2d at 421 (emphasizing that the rules for written interrogatories are <i>not</i> the same as those for taking oral depositions).” An interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact or would be
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	based on information obtained or legal theories developed in anticipation of litigation or in preparation for trial.” Cal. Civ. Proc. Code § 2030.010(b). While no specific provision applies this principle to requests for production, it is this Court’s opinion that, unlike an interrogatory, a request for production does not ask the responding party to adopt a factual contention. Instead, it asks the responding party to produce documents that are responsive to a specified category of inquiry. Thus, the more appropriate retort would be a statement of inability to comply because the requested production never existed or is otherwise protected from disclosure by a particular privilege. The California Constitution expressly protects an individual’s right to privacy. Cal. Const., art. I, § 1. “Where ‘a discovery request seeks information implicating the constitutional right of privacy’ the party seeking discovery must make a showing of need greater than that needed for discovery requests generally.” <i>Cnty. of L.A. v. Super. Ct.</i>, 65 Cal. App. 5th 621, 629 (2021) (<i>quoting Williams, supra</i>, 3 Cal. 5th at 556). Under <i>Hill v. NCAA</i> and <i>Williams</i>, courts apply a balancing test: the <i>opposing party</i> must demonstrate a protected privacy interest, a reasonable expectation of privacy, and a serious intrusion. <i>Hill v. National Collegiate Athletic Ass’n</i>, 7 Cal. 4th 1, 35-39 (1994); <i>Williams, supra</i>, 3 Cal. 5th at 552-60. The burden then shifts to the propounding party to show legitimate countervailing interests. <i>Williams, supra</i>, 3 Cal. 5th at 552. Courts balance those interests and may impose protective measures. <i>Id.</i> Where there is no serious invasion of a privacy interest, a Court is not required to balance the privacy interests of the objectors or objecting party against the discovery interests of the propounding party. <i>Alch v. Super. Ct.</i>, 165 Cal. App. 4th 1412, 1427 (2008) (citing <i>Pioneer Electronics (USA), Inc. v Super. Ct.</i>, 40 Cal. 4th 360, 371, and <i>Hill, supra</i>, 7 Cal. 4th at 37). Additionally, “if the intrusion is limited[,] and confidential information is carefully shielded from disclosure except for those who have a legitimate need to know, privacy
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	concerns are assuaged.” <i>Pioneer, supra</i>, 40 Cal. 4th at 371. Although disclosure may invade their privacy, there is generally no protection for the identity, addresses, and phone numbers of percipient witnesses. <i>Pioneer, supra</i>, 40 Cal. 4th at 373; <i>see also Alch, supra</i>, 165 Cal. App. 4th at 1426 (holding that basic identifying and demographic information of percipient witnesses, including names, addresses, and phone numbers, is discoverable, and the trial court erred in failing to strike privacy objections to discovery requests seeking this information). “Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document . . .” Cal. Civ. Proc. Code § 2017.010; <i>e.g., Williams, supra</i>, 3 Cal. 5th at 541. Further, where a nonparty’s identity is relevant to the action, a party may be compelled to disclose their name, address, and phone number. <i>Pioneer Electronics, supra</i>, 40 Cal. 4th at 367 (citing <i>Hill, supra</i>, 7 Cal. 4th at 36–37). Finally, a Court may not require the party seeking discovery to obtain the witness’ consent to disclosure. <i>See Puerto v. Super. Ct.</i>, 158 Cal. 4th 1242, 1251-52 (2008) (stating “a percipient witness’s willingness to participate in civil discovery has never been considered relevant—witnesses may be compelled to appear and testify whether they want to or not.”). Privacy protections afforded by the Insurance Information and Privacy Protection Act (“IIPPA”) are addressed in Section 791.13 of the California Insurance Code which provides that insurance institutions “shall not disclose any personal or privileged information about an individual collected or received in connection with an insurance transaction unless the disclosure is . . . [i]n response to a facially valid administrative or judicial order, including a search warrant or subpoena.” Cal. Ins. Code § 791.13(h); <i>see Irvington-Moore, Inc. v. Super. Ct.</i>, 14 Cal. App. 4th 733, 741 (1993) (stating that the “[IIPPA] applies to, and restricts, information gathering practices and disclosures of information of insurers. It does not create a privilege
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		against discovery by an insured party who is a party to a lawsuit.”); <i>but see Id.</i> at 743 (not foreclosing the possibility of granting a protective order to restrict the disclosure of sensitive personal and financial information despite the foregoing). Objections on the grounds that a request seeks confidential commercial information are not valid, nor is proprietary information protected on privacy grounds. <i>Nativi v. Deutsche Bank Nat’l Tr. Co.</i> 223 Cal. App. 4th 261, 313-14 (2014). However, California Code of Civil Procedure Section 2031.060 permits courts to direct that “a trade secret or other confidential . . . commercial information not be disclosed, or be disclosed only to specified persons or in a specified way” upon a party’s motion accompanied by a meet and confer declaration, and a showing of good cause. Cal. Civ. Proc. Code § 2031.060(a), (b)(5). Pursuant to California Code of Civil Procedure Section 2031.240(c), “[i]f an objection is based on a claim of privilege . . . the response <i>shall</i> provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.” Cal. Civ. Proc. Code § 2031.240(c) (emphasis added). “The purpose of a ‘privilege log’ is to provide a specific factual description of documents in aid of substantiating a claim of privilege in connection with a request for document production.” <i>Hernandez v. Super. Ct.</i>, 112 Cal. App. 4th 285, 292 (2003). Critically, specific factual descriptions of documents permit a judicial evaluation of a claim of privilege. <i>Id.</i> It is the initial burden of the party asserting the privilege to demonstrate that the communication falls within the privilege. <i>Wellpoint Health Networks, Inc. v. Super. Ct.</i>, 59 Cal. App. 4th 110, 123 (1997). Boilerplate privilege objections, when timely served, are sufficient to preserve them despite their other substantive flaws. <i>See Catalina Island Yacht Club v. Super. Ct.</i>, 242 Cal. App. 4th 1116, 1129 (2015). Accordingly, if a party responding to an inspection demand <i>timely</i> serves a response asserting an objection based on privilege, the trial court lacks authority to order the objection waived even if the responding party fails to serve
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	a privilege log, serves an untimely privilege log, or serves a privilege log that fails either to adequately identify the documents to which the objection purportedly applies or provide sufficient factual information for the propounding party to evaluate the objection. <i>People ex rel. Lockyer v. Super. Ct.</i>, 122 Cal. App. 4th 1060, 1074-75 (2004) (finding “[b]ecause the [responding parties] timely objected on the grounds of privilege, they preserved these objections, regardless of whether the objections were sufficiently detailed in their response or privilege log and the court, as a matter of law, could not find that they had waived these privileges”). The appropriate remedy if the response or a privilege log fails to provide sufficient information to allow the court to rule on the merits is to order the responding party to serve a privilege log and impose sanctions for the deficient response. <i>Catalina Island Yacht Club, supra</i> at 1127; <i>see also</i> Cal. Civ. Proc. Code § 2031.310(h). The attorney client privilege is “absolute and prevents disclosure of the communication [between a client and attorney] regardless of its relevance, necessity or other circumstances peculiar to the case.” <i>Kerner v. Super. Ct.</i>, 206 Cal. App. 4th 84, 111 (2012) (citing <i>Costco Wholesale Corp. v. Super. Ct.</i>, 47 Cal.4th 725, 733, 101 (2009); Cal. Evid. Code, § 954. A communication between a client and their attorney is not privileged “unless the client intends that it be treated in confidence.” <i>D.I. Chadbourne, Inc. v. Super. Ct. of City and Cnty of S.F.</i>, 60 Cal. 2d 723, 732 (1964) (citations omitted); <i>see</i> Cal. Evid. Code § 952 (defining confidential communication as that “information transmitted between a client and [their] lawyer in the course of that relationship and in confidence by a means which, so far as the client is aware, discloses the information to no third persons other than those who are present to further the interest of the client . . .”). The privilege only extends to requests which <i>call for</i>, rather than <i>refer to</i>, confidential communications between attorney and client. <i>Coy v. Super. Ct. of Contra Costa Cnty</i>, 58 Cal. 2d
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	210, 219 (1962) (emphasis added) (finding that a question seeking to elicit the date on which a party made a confidential communication with their attorney, rather than the substance of the communication, did not fall within the purview of the attorney client privilege.) The party asserting the privilege bears the initial burden of presenting facts necessary to support a finding that the communication was “made in the course of an attorney-client relationship.” <i>Costco Wholesale Corp, supra</i>, 47 Cal. 4th at 733 (citations omitted). The burden then shifts to the propounding party to establish that either “the communication was not confidential or that the privilege does not for other reasons apply[.]” <i>e.g.</i>, that the privilege was waived. <i>Id.</i> (citations omitted). California Code of Civil Procedure Section 2018.030 declares that “[a] writing that reflects an attorney’s impressions, conclusions, opinions, or legal research or theories is not discoverable <i>under any circumstances.</i>” Cal. Civ. Proc. Code § 2018.030(a) (emphasis added). Attorney work product that does not meet the definition of Section 2018.030(a) is afforded qualified protection. <i>Coito v. Super. Ct.</i>, 54 Cal. 4th 480, 488 (2012). Courts may permit the disclosure of attorney work product provided qualified protection, but <i>only</i> upon a determination “that the denial of discovery will unfairly prejudice the party seeking discovery in preparing that party’s claim or defense or will result in an injustice.” Cal. Civ. Proc. Code § 2108.030(b). California Evidence Code Section 1060 recognizes the trade secret privilege. Cal. Evid. Code § 1060; <i>Stadish v. Super. Ct.</i>, 71 Cal. App. 4th 1130, 1141 (1999) (finding that because the Evidence Code recognizes the trade secret privilege, a party objecting to the production of documents on the basis of trade secret privilege must do so in a timely fashion, in accordance with California Code of Civil Procedure Section [2031.300(a)]). The party asserting the trade secret privilege bears the burden of proving it is entitled to that privilege and must show: (i) the matter concerns information from which the respondent derives economic actual or potential economic
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		value; (ii) that the information sought is, in fact, a secret or not widely known; and (iii) that the owner has attempted to keep it secret. <i>Amgen Inc. v. Cal. Corr. Health Services</i>, 47 Cal. App. 5th 716, 734 (2020); Cal. Civ. Proc. Code § 3426.1(d). Defendant's Objections to Plaintiff's PROD, Set One Defendant objects to Plaintiff's PROD, Set One, Nos. 6, 18, 19, 21, 28, 29, and 32-35, on the grounds that the requests are vague and ambiguous as worded or as to specific terms, that the requests do not describe the documents requested with reasonable particularity, or both. ROA 89, pp. 32, 35, 41, 44, 48, 52, 63-64, 104-105, 109-110, 118-119. Defendant fails to show that the requests are so vague and ambiguous as to preclude an intelligent reply. Additionally, the Court finds that Plaintiff's requests each provide a reasonably particular description of the category of responsive documents. Accordingly, all of Defendant's objections to Plaintiff's PROD, Set One, on the grounds of ambiguity and insufficient description are OVERRULED. Defendant objects to Plaintiff's PROD, Set One, Nos. 6, 18, 19, 21, and 35 on the grounds that the requests assume facts not in evidence. ROA 89, pp. 52, 63-64, 104-105, 109-110, 118-119. As stated <i>supra</i>, this is not a valid objection. Pursuant to the foregoing, all of Defendant's objections to Plaintiff's PROD, Set One, on the grounds that a request assumes facts not in evidence are OVERRULED. Defendant objects to Plaintiff's PROD, Set One, Nos. 6-12, 14-22, 28, 29, 32, and 34-36 on the grounds that the requests are not reasonably calculated to result in the discovery of admissible evidence and impose an undue burden. ROA 89, pp. 23, 29, 32, 35, 48, 52, 56, 63-65, 69-70, 73-74, 79, 83-84, 92-93, 95-96, 99-100, 104-105, 109-110, 114-115, 118-119, 125. Defendant fails to make a sufficient factual showing that the extent of trouble or expense is incommensurate with the result sought. They are therefore OVERRULED. Additionally, Defendant's concerns raised in response to PROD, Set One, Nos. 6, 7, 9, 12, 15, 17-20 are mitigated by the parties' April 22, 2026, agreement to limit the scope of SROG, Set One, Nos. 17-28, and PROD, Set One, Nos. 6, 7, 9, 12, 14, 15, 17-22, and 37, to first-party residential water-loss claims in Orange County from January 27, 2022, through
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		January 27, 2025. ROA 97, ¶ 18. Consequently, and subject to the aforementioned limitations, Defendant's overbreadth objections to Plaintiff's RFP, Set One, Nos. 6, 7, 9, 12, 15, 17-20, are also OVERRULED. Defendant objects to Plaintiff's PROD, Set One, Nos. 6, 7, 9, 15, 17-19, and 21, on the grounds that the request violates the IPPA. ROA 89, pp. 63-64, 69-70, 73-74, 95-96, 99-100, 104-105, 109-110, 121. As outlined <i>supra</i>, this is not a valid objection when disclosure of privileged information about an individual, collected or received in connection with an insurance transaction, is made pursuant to a facially valid administrative or judicial order, including a search warrant or subpoena. Cal. Ins. Code § 791.13(h); see <i>Irvington-Moore, supra</i>, 14 Cal. App. 4th at 741. Consequently, all of Defendant's objections to Plaintiff's PROD, Set One, Nos. 6, 7, 9, 15, 17-19, and 21, on the grounds of IPPA privilege are OVERRULED. Defendant objects to Plaintiff's PROD, Set One, Nos. 6, 7, 9, 15, 17-19, 21, 22, and 35, on the grounds that Plaintiff's requests infringe upon the protected privacy interests of Defendant's employees or third party insureds. ROA 89, pp. 52, 63-64, 69-70, 73-74, 95-96, 99-100, 104-105, 109-110, 121, 126. Defendant's objections fail to identify a protected privacy interest. Therefore, pursuant to the foregoing, the Court need not weigh the privacy interests of Defendant against Plaintiff's Discovery interests. Consequently, all of Defendant's objections to Plaintiff's PROD, Set One, Nos. 6, 7, 9, 15, 17-19, 21, 22, and 35, on privacy grounds are OVERRULED. Additionally, Defendant cites case law allegedly supporting the proposition that disclosure of employee information is prohibited absent the employee's specific consent to a waiver of the privacy protection. ROA 89, p. 52, 119. The Court notes that the authority cited by Defendant neither offers such protection nor even slightly resembles the proposition. In fact, every authority cited by Defendant instead supported the <i>overruled and outdated</i> paradigm wherein, whenever a protected privacy interest was implicated by a discovery request, the propounding party bore the burden of justifying the demand by showing a
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	compelling need or interest. <i>See Williams, supra</i>, 3 Cal. 5th at 557. This regime has been supplanted by the current <i>Hill</i> regime, articulated <i>supra</i>. Defendant objects to Plaintiff's PROD, Set One, Nos. 6, 7, 9, 12, 15, 17-20, and 35, on the grounds that the requests "<i>potentially</i> seek expert opinions and/or writings." ROA 89, pp. 52, 63-65, 73-74, 89, 95-96, 99-100, 104-105, 109-110, 114-115 (emphasis added). As stated <i>supra</i>, this is not a valid objection to a request for production. Consequently, all of Defendant's objections to Plaintiff's PROD, Set One, on the grounds that the requests seek expert opinion are OVERRULED. Defendant objects to Plaintiff's PROD, Set One, Nos. 6 and 35, on the grounds that the requests seek the disclosure of confidential trade secret information. ROA 89, pp. 52, 65. Defendant's objections fail to make the factual showing, outlined <i>supra</i>, necessary to substantiate this objection. Consequently, all of Defendant's objections to Plaintiff's PROD, Set One, Nos. 6 and 35, on trade secret grounds are OVERRULED. Defendant objects to Plaintiff's PROD, Set One, Nos. 12, 20, and 21, on the grounds that the requests are not relevant to any issue in the action. ROA 89, pp. 65, 114-115, 118-119. Defendant's factual support for these objections fails to show how the requests could not reasonably assist in evaluating, preparing for, or facilitating the settlement of the action. Consequently, all of Defendant's objections to Plaintiff's PROD, Set One, on irrelevance grounds are OVERRULED. Defendant raises the attorney-client and attorney work product privileges in objecting to Plaintiff's PROD, Set One, Nos. 21, 28, 29, 33-35, and 38. ROA 89, pp. 32, 35, 44, 48, 52, 60, 118-119. The Court finds that Defendant has not provided sufficient facts to determine whether either privilege applies, as the requests do not facially seek privileged information. Consequently, Defendant must submit a privilege log with sufficient factual support to substantiate their attorney-client and attorney work product objections to Plaintiff's PROD, Set One, Nos. 21, 28,
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	29, 33-35, and 38. Plaintiff's PROD, Set One, Nos. 5, 13. As discussed above, Defendant's supplemental responses to Plaintiff's PROD, Set One, Nos. 5 and 13, are invalid. ROA 89, pp. 19, 26. Additionally, Defendant's initial responses are not code compliant on the grounds that they do not specify the date of compliance. <i>Id.</i> Consequently, Defendant must provide further, verified, code compliant responses to Plaintiff's RFP, Set One, Nos. 5 and 13, without objections. Plaintiff's PROD, Set One, Nos. 26, 27. Defendant's initial responses to Plaintiff's PROD, Set One, Nos. 26 and 27, consist of verified agreements to comply without objections. ROA 89, pp. 133, 135. Defendant's agreements to comply are not code compliant. They are evasive in describing what Defendant will produce and do not specify a production date. <i>Id.</i> Consequently, Defendant must provide a further, verified, code compliant response to Plaintiff's RFP, Set One, Nos. 26 and 27, without objections. Code Compliant Responses to Interrogatories Responses to interrogatories must consist of either: (i) an answer; (ii) an objection; or (iii) the exercise of the party's option to permit inspection or copying of records. Cal. Civ. Proc. Code § 2030.210(a). The responding party must answer as completely and straightforwardly as the information reasonably available to them permits. Cal. Civ. Proc. Code § 2030.220(a). Incomplete answers or answers that attempt to evade explicit questions are not code compliant. <i>Deyo v. Kilbourne</i>, 84 Cal. App. 3d 771, 783 (1978). Answers must be fully responsive and may not reference other documents in lieu of a response. <i>Deyo, supra</i>, 84 Cal. App. 3d at 783-84 (finding "it is not proper to answer by stating 'See my Deposition', or 'See my pleading . . .'"). If an answer requires reference to another document, said
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		document should be summarized and included in a comprehensive answer. <i>Id.</i> Responding parties must make a reasonable and good faith effort to obtain the information necessary to provide a complete answer, unless the information is equally available to the propounding party. Cal. Civ. Proc. Code § 2030.220(c); see <i>Regency Health Services, Inc. v. Super. Ct.</i>, 64 Cal. App. 4th 1496, 1504-05 (1998) (finding no exemption on the basis of incompetency from the general duty to conduct a reasonable investigation to obtain responsive information to discovery requests). This duty encompasses the responding party's responsibility to provide information available from sources under their control, such as the party's lawyer, agents, employees, family members, and expert trial witnesses. <i>Deyo, supra</i>, 84 Cal. App. 3d at 782; <i>Smith v. Super. Ct.</i>, 189 Cal. App. 2d 6, 12 (1961); <i>Castaline v. City of L.A.</i>, 47 Cal. App. 3d 580, 588 (1975) (stating that "[w]hile a corporation or public agency may select the person who answers interrogatories . . . it has a corresponding duty to obtain information from <i>all sources</i> under its control . . . which may not be personally known to the answering agent) (emphasis added). If a party is still unable to provide a complete answer after making a reasonable effort to obtain the requested information, they must specify why the information is unavailable and detail the efforts they made to obtain it. <i>Deyo, supra</i>, 84 Cal. App. 3d at 782. Finally, answers must be truthful. <i>Deyo, supra</i>, 84 Cal. App. 3d at 783 (stating "[p]arties . . . are required to state the truth, the whole truth, and nothing but the truth in answering written interrogatories."); <i>Guzman v. General Motors Corp.</i>, 154 Cal. App. 3d 438, 442-43 (1984). If an interrogatory requires an abstract, an audit, or a summary of information contained in records under the responding party's control, the responding party may elect to permit the inspection and copying of the records in lieu of a response, as long as the burden and expense of doing
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	so would be substantially the same for both parties. Cal. Civ. Proc. Code 2030.230. Electing this option is tantamount to confirming that the required records exist and contain the information necessary to answer the interrogatory. <i>Deyo, supra</i>, 84 Cal. App. 3d at 784 (citing <i>Kaiser Found. Hospitals v. Super. Ct. for L.A. Cnty</i>, 275 Cal. App. 2d 801, 805 (1969)). The responding party bears the burden of substantiating its objections to interrogatories. <i>Coy v. Super. Ct. of Contra Costa Cnty</i>, 58 Cal. 2d 210, 220 (1962). When objecting to interrogatories, responding parties must show “facts from which the trial court might find that the interrogatories were interposed for improper purposes.” <i>Id.</i> Objections must be stated individually, must specifically reference the interrogatory to which it is directed, and must clearly set forth the specific ground for the objection. Cal. Civ. Proc. Code §§ 2030.210(c), 2030.240(b). Blanket objections to an entire set of interrogatories and “boilerplate” objections, although sanctionable, are considered sufficient to preserve only objections raised on the grounds of attorney-client or work product privileges, and only if they are timely served. <i>Korea Data Systems Co. v. Super. Ct.</i>, 51 Cal. App. 4th 1513, 1516 (1997); <i>Scottsdale Ins. Co. v. Super. Ct.</i>, 59 Cal. App. 4th 263, 274 (1997). The requirements for substantiating objections detailed above for requests for production are similarly applicable to responses to interrogatories and are therefore incorporated herein. Defendant objects to Plaintiffs’ SROG, Set One, Nos. 17-28 on the grounds that the requests are vague and ambiguous as to the defined term “YOU” and as to the requests in their entirety. ROA 94. The Court finds that none of Plaintiffs’ requests are so unintelligible as to preclude an intelligent reply. Consequently, all of Defendant’s objections to Plaintiff’s SROG, Set One, Nos. 17-28 on the grounds of ambiguity are OVERRULED. Defendant objects to Plaintiffs’ SROG, Set One, Nos. 17-28 on the grounds that the requests impose an undue burden.
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		ROA 94. The Court finds that Defendant's factual showing is not sufficiently quantified to substantiate this objection; particularly in light of the parties' agreement to narrow the scope of each request. Consequently, all of Defendant's objections to Plaintiff's SROG, Set One, Nos. 17-28 on undue burden grounds are OVERRULED. Defendant objects to Plaintiffs' SROG, Set One, Nos. 18, 19, 21, 22, 24, 25, 27, and 28, on the grounds that the requests implicate privacy protections of insureds afforded by California Insurance Code Section 791.13. ROA 94. The Court finds that the parties' stipulation and protective order is sufficient to mitigate the risks of disclosure of personal or privileged information collected or received in connection with an insurance transaction. Consequently, all of Defendant's objections to Plaintiffs' SROG, Set One, Nos. 18, 19, 21, 22, 24, 25, 27, and 28, on Section 791.13 grounds are OVERRULED. Defendant objects to Plaintiffs' SROG, Set One, Nos. 18, 19, 21, 22, 24, 25, 27, and 28, on the grounds that the requests violate third party privacy rights afforded by Article I, Section 1, of the California Constitution. ROA 94. The Court finds that because Defendant's objections on this ground fail to identify a particular protected privacy interest, the Court is not required to weigh Defendant's privacy interests against Plaintiff's discovery interests. Accordingly, all of Defendant's objections to Plaintiff's SROG, Set One, Nos. 18, 19, 21, 22, 24, 25, 27, and 28, on third party privacy grounds are OVERRULED. Finally, the Court finds that Defendant's initial, verified responses to Plaintiffs' SROG, Set One, Nos. 18, 21, 22, 24, 25, 27, and 28 are incomplete and evasive on the grounds that Defendant did not provide responses to the interrogatories to which they refer. ROA 94, pp. 10, 23, 28, 37, 42, 50, 55. Consequently, and pursuant to the foregoing, Defendant must provide further, verified, code compliant responses to Plaintiff's SROG, Set One, Nos. 17-28, without objections. Sanctions re: Motions to Compel Further Responses to Discovery
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'Whenever one party's improper actions—even if not “willful”—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party.’” *Ellis v. Toshiba Am. Info. Sys. Inc.*, 218 Cal. App. 4th 853, 878 (2013) (quoting *Clement v. Alegre*, 177 Cal. App. 4th 1277, 1286-1287 (2000)).

Courts must impose monetary sanctions against any party that unsuccessfully makes or opposes a motion to compel further responses to interrogatories or demands for production, absent a finding that the party “subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code §§ 2030.300(d), 2031.310(h).

The term “substantial justification” means a justification that “is clearly reasonable because it is well grounded in both law and fact.” *Doe v. U.S. Swimming, Inc.*, 200 Cal. App. 4th 1424, 1434 (2011).

Here, Plaintiff does not offer, and the Court does not find, any substantial justification for Plaintiff’s persistence, without good cause, in moving to compel further responses to Plaintiff’s RFP, Set One, Nos. 1-4, 30, and 31. Similarly, the Court does not find good cause for Defendant’s failure to serve timely, verified, code compliant responses to Plaintiff’s discovery demands outlined *supra*.

However, neither party seeks sanctions in this matter and thus no party has been put on notice of the potential imposition of sanctions. Accordingly, the imposition of sanctions would violate due process and is therefore inappropriate.

Accordingly, the Court makes the following orders:

The Court **GRANTS IN PART** Plaintiff’s Motion to Compel Further Responses to Requests for Production, Set One, and **ORDERS** Defendant: to provide further, verified, code compliant responses, without objections, and responsive documents, to Plaintiff’s Requests for Production, Set One,

		Nos. 5 and 11; to provide further, verified, code compliant responses, without objections, and responsive documents specified in Plaintiff's Separate Statement (ROA 89), to Plaintiff's Requests for Production, Set One, No. 6; to provide a further, verified, code compliant response, without objections, and responsive documents, in accordance with the parties' agreed upon narrowed scope, to Plaintiff's Requests for Production, Set One, Nos. 7, 9, 14, 15, 17-20, 22, 26, and 27; to provide further, verified, code compliant responses, without objections, and in the manner specified in Plaintiff's Separate Statement (ROA 89), to Plaintiff's Requests for Production, Set One, Nos. 8, 10, 16, and 36; to provide further, verified, code compliant responses, without objections, and responsive documents, in the manner specified in Plaintiff's Separate Statement (ROA 89), to Plaintiff's Requests for Production, Set One, Nos. 12, 13, and 26; and to provide a privilege log with sufficient factual information to substantiate Defendant's attorney client and attorney work product privilege objections to Plaintiff's Requests for Production, Set One, Nos. 21, 28, 29, 33-35, and 38; within fourteen (14) days of receiving notice of this Order. The Court GRANTS Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set One (ROA 102), and ORDERS Defendant to provide further, verified, code compliant responses to Plaintiff's Special Interrogatories, Set One, Nos. 17-28, without objections, and in accordance with both the parties' stipulated protective order (ROA 79) and agreed upon narrowed scope, no later than fourteen (14) days after receiving notice of this Order. Lastly, Defendant is ORDERED to appear and Show Cause re: Failure to Follow Court Orders—untimely service of supplemental responses previously ordered (ROA 69) on July 29, 2026, at 9:00 a.m. in this Department. Plaintiffs shall give notice.
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4.	<u>30-2023-01329501-CU-BC-CJC</u> Sunwest Bank vs. Encino Towers, LLC	Before the Court are two (2) Motions for Issue, Evidentiary, or Terminating Sanctions brought by Plaintiff Sunwest Bank (“Plaintiff”) against Defendant Kaysan Ghasseminejad (“Defendant”). ROAs 759, 763. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2023.030(a)-(c), 2023.030(d)(1), 2023.030(d)(4), 2030.300(e), 2031.310(i), 2030.300(e), 2031.320(c), and 2033.290(e), imposing issue and evidentiary sanctions against Defendant and preventing Defendant from introducing evidence related to Plaintiff’s claims, including damages, or, in the alternative, imposing terminating sanctions against Defendant and entering default against Defendant as to Plaintiff’s claims. ROA 759, p.2; ROA 763, p.2. Relevant Timeline of Events On March 21, 2025, Plaintiff propounded their first set of written discovery upon Defendant. ROA 763, Exhs. A-C; ROA 759, Exh. A. At that time, Defendant was represented by counsel. ROA 499, p.5 On July 11, 2025, Plaintiff served Defendant with motions to compel initial responses, by mail and email. ROAs 532, 534. On July 16, 2025, the parties were served with notice of the Court’s order to appear for an Informal Discovery Conference (“IDC”) on August 6, 2025. ROA 550. On August 8, 2025, neither Defendant nor Defendant’s counsel appeared for the IDC as ordered. <i>See</i> ROA 576, p.3. Consequently, the Court continued the IDC to August 27, 2025. <i>Id.</i> Both parties were provided notice of the continuance on August 13, 2025. <i>Id.</i>, p.1. On August 25, 2025, the Court granted Defendant’s counsel’s Motion to be Relieved as Counsel (“MRC”). ROA 478. The Order was effective as of August 29, 2025, when Defendant was served with notice. <i>Id.</i> Defendant has since, and remains, in <i>pro per</i>. On August 27, 2025, there were <i>again</i> no appearances by
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	Defendant or Defendant's counsel at the IDC. ROA 606. Therein, the Court once again continued the IDC to October 29, 2025. <i>Id.</i> The parties present waived notice, and the Court therefore did not provide notice to Defendant. <i>Id.</i> On September 3, 2025, the Notice of Ruling granting Defendant's Attorney's MRC was filed with the Court. ROA 594. It was thereafter served upon Plaintiff on September 8, 2025. ROA 615. On October 10, 2025, upon Cross-Defendant Preferred Bank's motion, the Court vacated Preferred Bank's motions and reiterated that the IDC remained set for October 29, 2025. ROA 643. Notice of the Court's order was not properly served upon Defendant. ROA 644, p.1. On October 28, 2025, the Court noted the parties' failure to file Joint Letter Brief no later than three (3) court days prior to the IDC, as ordered (ROA 643). ROA 659. Accordingly, the Court continued the IDC and all motions, and set an Order to Show Cause ("OSC") re: Defendant's Failure to Comply with Court's Order, to November 25, 2025. ROA 659. Again, Defendant was not properly served with notice of the Court's order. ROA 660. On November 11, 2025, the Court, <i>sua sponte</i>, noted that Defendant was not served with the Court's October 28, 2025, Order. ROA 677. Accordingly, the Court continued the IDC, the OSC, and all motions to December 30, 2025. The Court served Defendant with notice by mail on November 20, 2025. ROA 678. On December 30, 2025, Defendant predictably failed to appear for IDC as ordered. ROA 684. Consequently, the Court granted all of Plaintiff's motions, imposed monetary discovery sanctions upon Defendant in the amount of \$3,687.50, and an additional monetary sanction of \$200 upon Defendant for failure to comply with the Court's order. <i>Id.</i> Plaintiff served Defendant with notice of the Court's ruling on January 5, 2026, by mail. ROA 763, Exh. E. The Court's Order specified that Defendant must pay the monetary discovery sanctions to Plaintiff's counsel,
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	Buchalter LLP, within sixty (60) days of receiving notice of the Court's order (March 6, 2026), and the Court's sanctions to the Court no later than February 27, 2026. ROA 684. The Court's order did not, however, specify when Defendant was to provide initial responses to Plaintiff's discovery demands. <i>Id.</i> On June 5, 2026, having received neither payment of sanctions nor initial responses, as ordered by the Court, Plaintiff served Defendant with notice of the herein Motions for Issue, Evidentiary, or Terminating Sanctions. ROAs 768, 772. The Court notes that the foregoing sequence of events indicates Defendant may not have had proper notice of the Court's August 27, 2025, Order continuing the IDC to October 10, 2025, and demanding an updated JLB. Thus, the Court's sanctions upon Defendant for failure to file the JLB are potentially improper. However, because today's order vacates the prior order imposing discretionary sanctions for Defendant's failure to comply with that order and instead imposes terminating sanctions, the issue of whether Defendant received notice of the requirement to file the JLB is moot. <i>See infra.</i> Discretionary Sanctions for Misuse of the Discovery Process "California discovery law authorizes a range of penalties, including monetary, issue, evidence, and terminating sanctions, for conduct amounting to 'misuse of the discovery process.'" <i>Doppes v. Bentley Motors, Inc.</i>, 174 Cal. App. 4th 967, 991 (2009); Cal. Civ. Proc. Code §§ 2023.030(b)-(d), 2030.290(c), 2031.300(c). "The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. <i>Doppes, supra</i>, 174 Cal. App. 4th at 992 (citing <i>Reedy v. Bussell</i>, 148 Cal. App. 4th 1272, 1294 (2007)). In choosing a sanction, "[t]he trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery." <i>Doppes, supra</i>, 174 Cal. App. 4th at 992. Under California Code of Civil Procedure Section 2023.030,
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		courts may impose terminating sanctions by way of striking all or parts of the pleadings, staying proceedings by the offending party until the court's discovery orders are obeyed, dismissing all or part of the offender's action, or rendering a judgment by default against the offending party. Cal. Civ. Proc. Code § 2023.030(d). "The courts have long recognized that the terminating sanction is a drastic penalty and should be used sparingly." <i>Lopez v. Watchtower Bible and Tract Soc'y of N.Y.</i>, 246 Cal. App. 4th 566, 604 (2016). Proportionality is critical when it comes to terminating sanctions because they altogether deny the non-compliant party a hearing on the merits and thus implicate due process. <i>Id.</i> To ensure proportionality, trial courts should generally take an "incremental" approach—that is, they should "attempt[] less severe alternative[] [sanctions]" <i>unless</i> the "record clearly shows lesser sanctions would be ineffective." <i>Id.</i> (emphasis added). While a decision to order terminating sanctions should not be made lightly, "where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." <i>Mileikowsky v. Tenet Healthsystem</i>, 128 Cal. App. 4th 262, 279-280 (2005). Under this standard, trial courts have properly imposed terminating sanctions when parties have willfully disobeyed even <i>just one</i> discovery order. See <i>Lang v. Hochman</i>, 77 Cal. App. 4th 1225, 1244 (2000) (citing <i>Collisson & Kaplan v. Hartunian</i>, 21 Cal. App. 4th 1611 (1994)). "Only two facts are absolutely prerequisite to imposition of the [nonmonetary] sanction: (1) there must be a failure to comply . . . and (2) the failure must be willful." <i>Calvert Fire Ins. Co. v. Cropper</i>, 141 Cal. App. 3d 901, 904 (1983); e.g., <i>Midwife v. Bernal</i>, 203 Cal. App. 3d 57, 62-63 (1988). Willfulness in the context of nonmonetary sanctions means a "conscious or intentional failure to act, as distinguished from accidental or involuntary noncompliance . . ." <i>Deyo v.</i>
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Kilbourne, 84 Cal. App. 3d 771, 787-788 (1978). “Lack of diligence may be deemed willful in the sense that the party understood his obligation, had the ability to comply, and failed to comply.” *Id.* at 787. *See Housing Authority v. Gomez*, 26 Cal. App. 3d 366, 372-73 (1972) (stating that a court may “justifiably conclude that [a party] ha[s] no intention of being deposed and would continue to engage in evasive tactics to achieve that end” where the party has already failed to appear for deposition and respond to discovery requests, including by disobeying a court order to do so).

Here, Defendant failed to appear to two (2) properly noticed IDCs (ROAs 576, 684), failed to comply with the Court’s order to provide responses to Plaintiff’s discovery, and failed to pay monetary discovery sanctions as ordered. ROAs 576, 684. Further, Defendant has failed to participate in these discovery proceedings or file any required papers at any stage. Although the Court notes initial deficiencies in service, those deficiencies were cured, and Defendant ultimately received proper notice of these proceedings. Accordingly, the Court finds that Defendant’s noncompliance was neither accidental nor involuntary, but willful.

The Court has imposed lesser sanctions to compel compliance, to no avail. Thus, the Court is convinced that less severe sanctions will not compel compliance and would be futile.

Accordingly, Defendant’s Motions for terminating sanctions against Defendant are **GRANTED**, and Defendant’s Answer (ROA 375) and Cross Complaint (ROA 378) as to Defendant are **STRICKEN**.

Plaintiff is **ORDERED** to proceed by way of default pursuant to California Code of Civil Procedure Section 585.

Additionally, the Court **VACATES** its prior orders only as to the imposition of discretionary monetary sanctions for failure to comply with the Court’s order to file a Joint Letter Brief (ROA 684).

The Court orders Clerk to give notice.

5.	30-2023-01321234-CU-FR-CJC Wang vs. Liu	Before the Court is a Motion for Terminating Sanctions brought by Plaintiffs Xiuming Wang, Shihong Wu, and Shangtu Automobile Group (USA) Co. ("Plaintiffs") against Defendant Qingwu Liu ("Defendant"). ROA 220. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2023.010 and 2023.030, imposing terminating sanctions by striking Defendant's Answer and entering default for Plaintiff, in addition to the imposition of monetary sanctions for discovery misuse in the amount of \$6,000, representing the fees and costs incurred in bringing their motions to compel (ROAs 199, 201, 202, 215) and the herein motion. ROA 220, pp. 1, 8, 11. Discretionary Sanctions for Misuse of the Discovery Process "California discovery law authorizes a range of penalties, including monetary, issue, evidence, and terminating sanctions, for conduct amounting to 'misuse of the discovery process.'" <i>Doppes v. Bentley Motors, Inc.</i>, 174 Cal. App. 4th 967, 991 (2009); Cal. Civ. Proc. Code §§ 2023.030(b)-(d), 2030.290(c), 2031.300(c). "The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. <i>Doppes, supra</i>, 174 Cal. App. 4th at 992 (citing <i>Reedy v. Bussell</i>, 148 Cal. App. 4th 1272, 1294 (2007)). In choosing a sanction, "[t]he trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery." <i>Doppes, supra</i>, 174 Cal. App. 4th at 992. Under California Code of Civil Procedure Section 2023.030,

		courts may impose terminating sanctions by way of striking all or parts of the pleadings, staying proceedings by the offending party until the court's discovery orders are obeyed, dismissing all or part of the offender's action, or rendering a judgment by default against the offending party. Cal. Civ. Proc. Code § 2023.030(d). "The courts have long recognized that the terminating sanction is a drastic penalty and should be used sparingly." <i>Lopez v. Watchtower Bible and Tract Soc'y of N.Y.</i>, 246 Cal. App. 4th 566, 604 (2016). Proportionality is critical when it comes to terminating sanctions because they altogether deny the non-compliant party a hearing on the merits and thus implicate due process. <i>Id.</i> To ensure proportionality, trial courts should generally take an "incremental" approach—that is, they should "attempt[] less severe alternative[] [sanctions]" <i>unless</i> the "record clearly shows lesser sanctions would be ineffective." <i>Id.</i> at 604 (emphasis added). While a decision to order terminating sanctions should not be made lightly, "where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." <i>Mileikowsky v. Tenet Healthsystem</i>, 128 Cal. App. 4th 262, 279-280 (2005). Under this standard, trial courts have properly imposed terminating sanctions when parties have willfully disobeyed even <i>just one</i> discovery order. See <i>Lang v. Hochman</i>, 77 Cal. App. 4th 1225, 1244 (2000) (citing <i>Collisson & Kaplan v. Hartunian</i>, 21 Cal. App. 4th 1611 (1994)). "Only two facts are absolutely prerequisite to imposition of the [nonmonetary] sanction: (1) there must be a failure to comply . . . and (2) the failure must be willful." <i>Calvert Fire Ins. Co. v. Cropper</i>, 141 Cal. App. 3d 901, 904 (1983). Willfulness in the context of nonmonetary sanctions means a "conscious or intentional failure to act, as distinguished from accidental or involuntary noncompliance . . ." <i>Deyo v. Kilbourne</i>, 84 Cal. App. 3d 771, 787-788 (1978). "Lack of
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		diligence may be deemed willful in the sense that the party understood his obligation, had the ability to comply, and failed to comply.” <i>Deyo, supra</i>, 84 Cal. App. 3d at p. 787. <i>See Housing Auth. v. Gomez</i>, 26 Cal. App. 3d 366, 372-73 (1972) (stating that a court may “justifiably conclude that [a party] ha[s] no intention of being deposed and would continue to engage in evasive tactics to achieve that end” where the party has already failed to appear for deposition and respond to discovery requests, including by disobeying a court order to do so). Here, on March 25, 2026, acting on Plaintiff’s Motion to Compel Defendant’s Attendance at Deposition and Production of Documents (ROA 187), the Court ordered the parties to attend an Informal Discovery Conference (“IDC”), facilitated by the Court, on April 15, 2026. ROA 192. On April 15, 2026, Defendant failed to appear for IDC, as ordered. ROA 195. Consequently, the Court granted Plaintiff’s motion and ordered Defendant to appear for deposition within fourteen (14) days. <i>Id.</i> Additionally, the Court imposed monetary discovery sanctions upon Defendant in the amount of \$2,000.00, due and payable to Plaintiff’s counsel, Farnell & Norman, within thirty (30) days. <i>Id.</i> Defendant <i>again</i> failed to appear for Plaintiff’s properly noticed deposition and has failed to pay the court-ordered sanctions. ROA 220, Decl. of Ronald Norman, ¶ 6. Additionally, on May 13, 2026, acting on Plaintiff’s Motions to Compel Initial Responses (ROAs 199, 201, 202, 215), the Court ordered Defendant to provide verified, code compliant responses to Plaintiff’s written discovery demands by no later than June 3, 2026. ROA 226. Defendant <i>again</i> did not comply with the Court’s order. ROA 235, Decl. of Ronald Norman ¶ 6. Pursuant to the foregoing, the Court finds the record shows, unequivocally, that Defendant has failed to comply with multiple of this Court’s orders. Further, as Defendant provides no facts to the contrary, the Court finds that
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		Defendant's noncompliance has been willful. The Court has imposed lesser sanctions upon Defendant in the hopes of compelling compliance, to no avail. Thus, the Court is convinced that less severe sanctions will not compel compliance and that terminating sanctions are appropriate. It is this Court's determination, however, that the imposition of additional monetary sanctions would be disproportionate and futile. Accordingly, Plaintiff's Motion for terminating sanctions is GRANTED, and Defendant's Answer (ROA 17) is STRICKEN as to Defendant only. Plaintiff is ORDERED to proceed by way of default pursuant to California Code of Civil Procedure Section 585. The Court orders Clerk to give notice.
6.	30-2025-01500136-CU-BC-CJC Barr vs. Elite Beverage International Inc.	No tentative.
7.	30-2026-01552454-CU-FR-CJC Canyon Crossing LLC vs. Udoffia	Before the Court are two (2) Motions for Terminating Sanctions brought by Plaintiff Canyon Crossing LLC ("Plaintiff"), one against Defendant Enoh Stephen Udoffia ("Enoh U.") and one against Defendant Erica Yvonne Udoffia ("Erica U.") (collectively, "Defendants"). ROAs 24, 38. Plaintiff brings these motions based on Defendants' alleged spoliation of evidence. <i>Id.</i> Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2023.010 and 2023.030, imposing terminating sanctions by striking Enoh U's Answer, and imposing monetary sanctions in the amount of \$7,760 upon both Enoh U. and his counsel of record, Greenacre Law,

		jointly and severally, for fees and costs incurred in bringing Plaintiff's motion against Enoh U. ROA 24, pp. 3-4, 13. In the alternative, Plaintiff asks the Court to treat this motion as a Motion to Compel Further Responses to Requests for Production, and order Enoh U. to provide verified, code compliant responses and responsive documents. ROA 24, p.3. Plaintiff also seeks an order, pursuant to California Code of Civil Procedure Sections 2023.010 and 2023.030, imposing terminating sanctions and imposing monetary sanctions in the amount of \$4,460 upon both Erica U. and her counsel of record, Greenacre Law, jointly and severally, for fees and costs incurred in bringing Plaintiff's motion against Erica U. ROA 38, p.3. In the alternative, Plaintiff asks the Court to treat this motion as a Motion to Compel Further Responses to Requests for Production, and order Erica U. to provide verified, code compliant responses and responsive documents. ROA 38, p.2. Together, Plaintiff seeks a total of \$12,220.00 in monetary discovery sanctions. Defendants request that the Court deny Plaintiff's motions in their entirety. ROA 66, p.8; ROA 60, p.8. Discretionary Sanctions for Spoliation of Evidence Spoliation "is a misuse of the discovery process" under California Code of Civil Procedure Section 2023.101, and "is subject to a broad range of punishment, including monetary, issue, evidentiary, and terminating sanctions." Cal. Civ. Proc Code § 2023.010(d); <i>see Cedars-Sinai Med. Ctr. v. Sup. Ct.</i>, 18 Cal. 4th 1, 12 (1998) (noting that destroying evidence in response to, or in anticipation of, a discovery request "would surely be a misuse of discovery within the meaning of [the Discovery Act]. . . ."). Accordingly, courts interpret the spoliation of evidence to encompass the destruction of, significant alteration of, suppression of, or "failure to preserve evidence for another's use in pending or future litigation." <i>Williams v. Russ</i>, 167 Cal. App. 4th 1215, 1223 (2008) (citations omitted);
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	see also <i>Cedars-Sinai Med. Ctr. v. Super. Ct.</i>, 18 Cal. 4th 1, 4 (1998). Where one party's wrongdoing makes it practically impossible for the moving party to prove its case, courts apply a burden-shifting analysis. <i>Williams, supra</i>, 167 Cal. App. 4th at 1226-27. "[A] party moving for discovery sanctions based on the spoliation of evidence must make an initial <i>prima facie</i> showing that the responding party in fact destroyed evidence that had a substantial probability of damaging the moving party's ability to establish an essential element of his claim or defense." <i>Id.</i> at 1227; see also Cal. Evid. Code, § 500 (providing "a party has the burden of proof as to each fact the existence or nonexistence of which is essential to the claim for relief or defense that he is asserting."). Thereafter, the burden of proof shifts to the party seeking to avoid sanctions to establish that the alleged spoliation was not willful. See <i>Corns v. Miller</i>, 181 Cal. App. 3d 195, 201 (1986); see also <i>Calvert Fire Ins. Co. v. Cropper</i>, 141 Cal. App. 3d 901, 904 (1983) ("Only two facts are absolutely prerequisite to imposition of the [terminating] sanction: (1) there must be a failure to comply . . . and (2) the failure must be willful."). Willfulness in the context of nonmonetary sanctions means a "conscious or intentional failure to act, as distinguished from accidental or involuntary noncompliance" <i>Deyo v. Kilbourne</i>, 84 Cal. App. 3d 771, 787-788 (1978). "The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. <i>Doppes v. Bentley Motors, Inc.</i>, 174 Cal. App. 4th 967, 992 (2009). In choosing a sanction, "[t]he trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery." <i>Id.</i> "Discovery sanctions 'should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.'" <i>Laguna Auto Body v. Farmers Ins. Exch.</i>, 231 Cal. App. 3d 481, 487 (1991) (quoting <i>Deyo, supra</i>, 84 Cal. App. 3d at 793). Discovery sanctions are intended to remedy discovery
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	abuse, not to punish the offending party. Accordingly, sanctions should be tailored to serve that remedial purpose, should not put the moving party in a better position than he would otherwise have been had he obtained the requested discovery, and should be proportionate to the offending party's misconduct. <i>Williams, supra</i>, 167 Cal. App. 4th at 1223 (citations omitted). Notwithstanding the foregoing, courts consider spoliation of evidence a particularly deplorable form of discovery misuse, entitled to terminating sanctions "in the first instance without a violation of prior court orders in egregious cases of intentional spoliation" <i>Williams, supra</i>, 167 Cal. App. 4th at 1223; <i>see Id.</i> (condemning spoliation for its negative impact on fairness and justice, and its potential to lead to erroneous decisions and increased litigation costs). Here, having duly considered Plaintiff's Separate Statements in support of the herein motions for terminating sanctions (ROAs 28, 36), the Court finds that Plaintiff does not satisfy its burden to make a <i>prima facie</i> showing that Defendants' alleged suppression results in the substantial probability of damaging Plaintiff's ability to establish an essential element of a claim. The Court understands Plaintiff to have misinterpreted the duty as requiring a showing of how the suppressed evidence <i>would</i> establish an essential element of a claim, rather than how its suppression would <i>prohibit</i> the fair administration of justice in this particular case. Plaintiff's approach leaves the Court to ponder whether Plaintiff could potentially establish essential elements of their claims by other means, and whether lesser sanctions would suffice. Consequently, the Court's inquiry into the allegations of spoliation halts short of the substantive merits of Plaintiff's claims. Additionally, on July 6, 2026, Court has ordered Enoh U. to provide further, verified, code compliant responses to the Plaintiff's Requests for Production ("RFP"), Set One, as a result of the Informal Discovery Conference ("IDC") facilitated by the Court. ROA 53. Thus, the Court considers
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	Plaintiff's request for alternative relief as to Enoch U. moot. <i>See</i> ROAs 18, 22, 53. Consequently, the Court's inquiry is narrowed to whether Plaintiff is entitled to further responses to their RFP, Set One, to Eric U. Motions to Compel Further Responses to Requests for Production California Code of Civil Procedure Section 2031.310 allows the requesting party to move for an order compelling further response to a [production] demand if, among other things, the demanding party deems that "[a] statement of compliance . . . is incomplete[,] [a] representation of inability to comply is inadequate, incomplete, or evasive[,] or [a]n objection in the response is without merit or too general." Cal. Civ. Proc. Code § 2031.310(a). The motion must be accompanied by a meet and confer declaration and must set forth specific facts showing good cause justifying the discovery demand. Cal. Civ. Proc Code § 2031.310(b). Effective January 1, 2026, a meet and confer declaration "shall state facts showing a reasonable and good faith attempt" on the part of the moving party to meet and confer either in person, telephonically, or by videoconference; e-mail alone will not suffice. Cal. Civ. Proc. Code § 2016.040(a). Additionally, the moving party's declaration "shall include whether [they have] met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion." Cal. Civ. Proc. Code § 2016.040(b). If notice of the demand is not served within forty-five (45) days of the responding party's service of their verified responses or verified supplemental responses, the demanding party waives the right to compel further responses absent an agreement by the parties in writing to a specific later date. Cal. Civ. Proc. Code § 2031.310(c). Section 1010.6 extends this deadline by two (2) court days for initial responses served by electronic means. Cal. Civ. Proc. Code § 1010.6(a)(3)(B). If the last day to perform an act
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	falls on a Saturday, Sunday, or holiday, the act may be performed on the next court day. Cal. Civ. Proc. Code § 12a(a). “[T]he time within which to make a motion to compel [absent a written agreement between the parties extending the deadline] . . . is mandatory and jurisdictional . . . it renders the court without authority to rule on motions to compel other than to deny them.” <i>Sexton v. Super. Ct.</i>, 58 Cal. App. 4th 1403, 1410 (1997); see <i>Weinstein v. Blumberg</i>, 25 Cal. App. 5th 316, 322 (2018) (reversing a lower court’s order to compel based on the motion’s untimeliness). Here, Plaintiff propounded RFP, Set One, on Erica U. on May 12, 2026. ROA 38, Decl. of Raul Garcia, ¶ 1. On June 11, 2026, Erica U. provided verified responses to Plaintiff’s RFP, Set One, by mail. <i>Id.</i> at ¶ 2. On June 15, 2026, Plaintiff provided Eric U. with an email correspondence outlining Plaintiff’s position demanding further responses. <i>Id.</i> at ¶ 3. Plaintiff made no further attempts to meet and confer by phone, in person, or by video conference before serving Erica U. with the instant Motion for Terminating Sanctions on June 23, 2026. ROA 38, Decl. of Raul Garcia; ROA 38, p. 46. Pursuant to the foregoing, the Court finds Plaintiff has not met the procedural requirements for this Court to properly consider the alternative relief requested on the grounds that Plaintiff’s declaration does not satisfy the meet and confer requirements of California Code of Civil Procedure Section 2016.040. Cal. Civ. Proc. Code § 2016.040. Accordingly, the Court DENIES WITHOUT PREJUDICE Plaintiff’s Motions for Terminating Sanctions. Defendant shall give notice.
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8.	<u>30-2023-01330408-CU-IC-CJC</u> U.S. Bank National Association vs. Pacific Life Insurance Company	No tentative.
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